



Notification Waiver Determination

State Swim – Swim Plus

Acquisition	State Swim Mount Barker Pty Ltd, State Swim Norwood Pty Ltd, and State Swim Findon Pty Ltd (collectively, the Buyers), applied for a notification waiver in respect of their proposed acquisition of the swim school businesses of Mt Barker Swimming School Pty Ltd, Norwood Swim School Pty Ltd, and Findon Swim School Pty Ltd, together with the associated intellectual property of Swim Plus Pty Ltd (collectively, the Targets), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	27 July 2026

Parties to the Acquisition	The Buyers are newly formed entities of Dolphin BidCo Pty Ltd (together with its connected entities, Dolphin). Dolphin operates six swimming schools across Greater Adelaide, and other swimming schools in Western Australia, Victoria, and Singapore under the State Swim brand. The State Swim swimming schools in Greater Adelaide are located in Clovercrest, Glen Osmond, Golden Grove, Morphet Road, Seaford, and Unley. The Targets operate 'Swim Plus' branded swimming schools in Mount Barker, Norwood, and Findon, in Greater Adelaide. Both State Swim and Swim Plus swimming schools primarily offer swimming lessons to children between the ages of 6 months to 10 years (learn-to-swim lessons).
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there is a small geographic overlap between the parties in the supply of learn-to-swim lessons on a local basis - there are alternative providers of learn-to-swim lessons in the local areas surrounding each Swim Plus swimming school and in Greater Adelaide more broadly.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**